

Waiver review — what we need

Attachment: Terms & Liability Waiver (draft, 3pp). Live at embersociety.la/waiver

THE BUSINESS

Traveling Lagree fitness classes in Greater Los Angeles. We transport and set up spring-loaded equipment at locations we do not own — private homes, offices, rooftops, storefronts, public markets, outdoor spaces. Two founder-instructors. Participants 18+. Two models: ticketed public pop-ups, and private events at a client's location.

HOW AGREEMENT IS COLLECTED TODAY

A terms-acceptance checkbox at Stripe checkout, linking to the attached document. Stripe records acceptance with a timestamp. There is no separately signed waiver, no health disclosure, no date of birth, and no emergency contact. Private-event guests and walk-ups at vendor events never pass through checkout at all.

QUESTIONS, IN PRIORITY ORDER

01 Is checkout acceptance enough — and what about guests?

The buyer is often not the participant: someone buys for a friend, a host books for twelve employees. Do we need a signed waiver per participant? This drives everything else.

02 Is the release enforceable as drafted?

Section 09. California enforces releases for ordinary negligence in recreational activity when clear, unambiguous and conspicuous — does our wording meet that bar?

03 Third-party venues.

Sections 04 and 09. How should liability be allocated between us, the venue and the private client? Should we require indemnification from hosts, or ask to be named additional insured?

04 What is missing that should be mandatory?

No health disclosure, no date of birth (18+ is self-asserted), no emergency contact. Which of these do you consider necessary rather than optional?

05 Clauses we have not included.

No indemnification, severability, governing law/venue, or arbitration clause. Which would you add, and in what form?

06 Is the no-refund policy enforceable?

Section 10. Tickets are non-refundable, non-transferable, no cancellation or rescheduling. It is disclosed at checkout and on this page — is that disclosure prominent enough?

07 Photography consent.

Section 06. Opt-out is by telling an instructor before class. Is that adequate for commercial use of someone's image under California right-of-publicity law?

ALSO WORTH YOUR VIEW

Entity and personal exposure. Advice on whether our current structure leaves the founders personally exposed matters more to us than any single clause.

Insurance. If our liability policy requires a signed waiver per participant, that likely overrides question 01 — worth flagging if you see the conflict.

WHAT WE ARE ASKING FOR

A flat-fee quote and turnaround estimate. Please also tell us whether reviewing our privacy policy (embersociety.la/privacy) and terms of sale in the same engagement is cheaper than a separate one.

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